Arshiya

Date: 16th August, 2023

To,

BARNET INDIA PVT. LTD.
17, Usha Kiran, 15, M.L. DHANKUKAR MARG,
MUMBAI-400026

Attn: Mr. Uday Grover - Director

Sub: Unit Service Agreement dated 19th August, 2020 bearing No. (ALSL/FTWZ/125/2020-21) executed by and between Arshiya Logistics Services Limited (Formerly Known as Laxmipati Balaji Exim Trading Limited) and BARNET INDIA PVT. LTD.; hereinafter referred to as "Principal Agreement".

Dear Sir,

We refer to the aforesaid Principal Agreement which is valid till 14th June, 2025.

1. As mutually agreed, we hereby amend the commercial as attached in Annexure 2 of the aforesaid Principal Agreement and shall be replaced with fresh Annexure 2 which is annexed hereto and shall be effective from 16th August, 2023 to 14th June, 2025.
2. This letter along with the Annexure 2 shall form part and parcel of the Principal Agreement.
3. All other terms and conditions contained in the Principal Agreement shall remain valid, subsisting and binding upon the Parties.
4. Kindly sign the duplicate copy of this letter and return to us in token of your acceptance.

For **Arshiya Logistics Services Limited**

(Authorised Signatory)

ARSHIYA LOGISTICS SERVICES LIMITED
Arshiya PTWZ ALSL MUMBAI IN

We accept the above

For **BARNET INDIA PVT. LTD.**

(Authorised Signatory)

BARNET INDIA PVT. LTD.

Arshiya Logistics Services Limited
Regd. Off.: 205&206 (Part), 2nd Floor, Ceejay House, Shiv Sagar Estate, F-Block, Dr. Annie Besant Road, Worli, Mumbai - 400018. India.
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CIN : U93000MH2008PLC183791

Arshiya FTWZ (Panvel) Commercials - Import from JNPT

Commercials - Barnet India Private Limited w. e. f. 16th August 2023

Sr. No.	ALSL Commercials	Gross weight + Container weight of Cargo	Tariff Rate in USD 20' Ft	Tariff Rate in USD 40' Ft	Unit Of Measurement
Part A : Non - Storage Charges					
I	***Non - Storage Charges for Destuffed & Cross-Stuff cargo***				
a	**Transportation PORT TO FTWZ/ FTWZ TO PORT (USD per Container)**	< 15 MT	162 (135+27)	207 (180+27)	Per Container
	(Including Gate-In & Survey charge, Fuel & Energy Surcharge,Gate-Out & Survey charge.). LOLO charges, if applicable would be extra.	15 MT to 20 MT	173 (146+23)	207 (180+27)	Per Container
		>20MT	186 (159+27)	207 (180+27)	Per Container
b	LOLO Charges at CY for Loaded container, applicable when container would be halted at CY for customs inspection or any other checks or any delay to procure DO and filing BOE.		7.2 USD	14.4 USD	Per Movement per loaded container
	LOLO Charges at CY for Empty container, if applicable for any delay to procure DO and filing BOE.		3.6 USD	7.2 USD	Per Movement per empty container
c	Empty Container Repositioning to/from shipping line yard (USD per container per move) - If applicable		59	90	Per Container
d	**Handling Charges for Palletised Cargo - USD per CBM/MT/Pallet (whichever is higher)**				Per CBM/MT/ Pallet (whichever is higher)
	Inbound handling				
	Inbound Handling Labor Charges		0.70		
	Inbound Handling Dock Area Storage/Usage Charges		1.30		
	Outbound handling				
	Outbound Handling Labor Charges		0.70		
	Outbound Handling Dock Area Storage/Usage Charges		1.30		
	In case of loose cargo (non-palletised), USD 1 per CBM/MT (whichever is higher) will be charged extra for Inbound & Outbound i.e. total handling will be 6 per CBM/MT (whichever is higher)				
Part B : Storage Charges					
I	**Storage charges for Destuff Cargo**				
	- Palletized cargo (Pallet dimension: 1m x 1.2m x 1.5m)		0.340		Per Pallet/Day
II	**Container Ground Rent Charges**		20'	40'	
	1 to 5 days		4.50	6.30	per day/ container
	6 to 10 days		6.30	9.00	per day/ container
	11th day onwards		9.00	13.50	per day/ container

Specific Notes :

1	Statutory Charges will be levied as applicable
2	Storage charges will commence from the date of Port discharge.
3	In case of Reefer Containers the Tariff Rates will be increased by 50% over and above the normal Tariff Rates for all Non-Storage heads & Container ground rent.
4	The Tariff Rates quoted are for Normal Cargo. For HAZ cargo, the Tariff Rates for Storage as well as Non-Storage will be increased by 40% over and above the normal rates.
5	If the size of the cargo exceeds the standard dimensions of the Pallet mentioned above, the applicable Tariff Rate will be for two Pallets or more depending on the size of the cargo.
6	Any toll charges, if any, paid by Arshiya would be chargeable to the client.
7	All Shipping Line charges (Like Delivery Order, THC, Documentation, Detention, Empty Yard LOLO, etc) shall be settled directly by Customer.
8	Client would have to pay vehicle detention charges in case vehicle is held up at client/ shipping line empty container yard for damage containers or any reason whatsoever.
9	The empty pallets/plastic sheets etc will be removed by client simultaneously with the outbound cargo or maximum within 24 Hrs from the loose cargo Outbound (after due permission from Customs). If the same is removed simultaneously with loose cargo, no additional charges will be applicable. However, if the same is not removed simultaneously with loose cargo, loading of empty pallets and labour for the same to be arranged by customer. In case, Arshiya has to do loading of empty pallets and Plastic sheets then charges @USD 1.00 per MT will be applicable together with weighment charges. If the empty pallets and plastic sheets are not removed by the client within 24 Hrs from cargo Outbound date, Arshiya reserves the right to dispose off such material as scrap. Gate in and gate out charges will be applicable on the vehicle collecting empty pallets. Also, the vehicle to load the empty pallets should be sent before 11 am.
10	Fuel Price Fluctuation: During the contracted period, the freight rate revision due to fuel price variation will be in the proportion of fuel component of the total freight cost as illustrated below. The base rate or reference rate of diesel will be considered as "the rate of diesel" on the date this RFQ is floated. The fuel component will be considered as 45% of total freight cost. Up to 5% cumulative increase or decrease: There will be no change in the freight. More than 5% cumulative increase or decrease: The revision in freight rate will be based on the following equation :- Revised rate = Existing rate + (existing rate X % change in diesel X 45%) For example: Rate of Diesel on RFQ date (Base Rate) - INR 97.28 1) Rate of Diesel on xx date - INR 101 ==> There will be no change in contract rate 2) Rate of Diesel on xx date - INR 105 ==> Revised Rate = 5000 + (5000 x 7.94% x 45%) = 5,179

ARSHIYA LOGISTICS SERVICES LIMITED ARSHIYA FTWZ Arshiya ALSL MUMBAI IN

BARNET INDIA PVT. LTD.

11	Any Value Optimisation Services that may be rendered to the Customer would be charged additonally as per the scope of work. For use of special equipments / vehicles required to handle cargo, extra charges would be applied on case to case basis (eg. Low bed trailers, hydraulic trailers, cranes, heavy forklift, hydra, etc.). Normally, if the package weight is more than 3 MT(or is less than 3 MT but voluminous) then Special Equipments/MHE are hired. If required, the applicable rates for these special equipments/MHE's may be checked from your CRM/Sales Team.
12	The Customer shall insure the Cargo & Container against all risks appropriately.
13	Client to inform in writing for any Inbound / Outbound planning before 5.00 pm on the previous day of Inbound / Outbound to the FTWZ-operations.
14	Idling labour charges will be levied as and when the Inbound / outbound plan is cancelled/ postponed by the client as tonnage labours are arranged based on client's prior intimation & planning.
15	Overnight parking would not be allowed within the FTWZ. However, in extreme situations , if found necessary , the operations incharge at FTWZ may permit such an entry.
16	Payment for FTWZ services availed by the Principal as per this agreement shall be settled within 7 days from date of Invoice.
17	The Principal / Customer and / or End Customer will be responsible to obtain any / all statutory Approvals or Permissions that may be required to import / export / handle the cargo in FTWZ or DTA.
18	All Rates are subject to annual revision.
19	In the event principal desires to avail any additional service then standard rates shall be applicable for the same
20	The Customer shall intimate any discrepancy in the invoice to Arshiya within a period of 7 days from the receipt of the Invoice. The Invoice will be considered to be correct and valid.
21	The credit period will not be applicable in respect of last out-bound of the cargo from the FTWZ. Therefore, all outstanding payments should be paid by the Customer before the last out-bound movement of the cargo from the FTWZ.
legal	Notes:- DTA - Domestic Tariff Area — FCL - Full Container Load MTS - Metric Tonnes — TEU - Twenty Feet Equivalent Unit ODC - Over Dimensional Cargo — FEU - Forty Feet Equivalent Unit CBM - Cubic Meter — LCL - Less than Container Load

Annexure : A

Commoditywise storage charges

	Product	Tariff Rate in USD	UOM
a	**Non-Ferrous Metals**		
	- Cobalt	0.66	Per MT Per Day
	- Nickel & Tin	0.50	Per MT Per Day
	- Copper	0.33	Per MT Per Day
	- Aluminium, Zinc, Lead and Ferro Alloys	0.20	Per MT Per Day
	- Aluminium, Zinc, Lead and Ferro Alloys (OPEN Storage)	0.13	Per MT Per Day
b	**Plastics - Polymers (in Bags)**	0.33	Per MT Per Day
c	**Yarn (in Bags/Cartons)**	0.83	Per MT Per Day
d	**Chemicals (in Bags)**	0.44	Per MT Per Day

Annexure : B

Other non storage charges

Sr. no.	Particulars	Currency	TEU	FEU
1	Container scanning	USD	35	50
2	LCL cargo/Air shipment - Gate in & Survey charges	USD	26.40	26.40
3	Container plug in & Monitaring charges	USD	82.50	132
4	**Overnight Parking charges** (on approval of Operation Incharge)	INR	1100	1100
5	**Idle labour charges** (per shift wise)	INR	1100	1320
6	**Vehicle detention charges** (4 hour free afterthat @300 per hour)	INR	330	330
7	Intra SEZ transfer	USD	110	110

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BARNET INDIA PVT. LTD.